

25STCV33709 25STCV33709

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-08-20

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Case Number: 25STCV33709 Hearing Date: August 20, 2026 Dept: S25

Motion: Plaintiff Nickolas Altman's Motion to be Relieved as Counsel

Moving Party: Plaintiff Nickolas Altman ("Plaintiff")

Responding Party: None

Tentative Ruling

Plaintiff counsel's notice of motion and motion to be relieved as counsel is made on the proper Judicial Council of California form MC-051. The notice of motion and motion complies with Cal. Rules of Court, rule 3.1362(a). Plaintiff counsel provided a declaration stating that: "Plaintiff Nickolas Altman is in propria persona and I represent Mr. Altman through a limited scope appearance / designation. Recently, Mr. Altman is no longer returning my phone calls, electronic mail messages, whereby I had requested Mr. Altman to contact the law office as soon as possible. Mr. Altman is no longer in contact with the office whereby I cannot adequately continue with legal representation. The case has ongoing discovery issues and continued Case Management Conference. Since Mr. Altman is not returning my messages, I cannot obtain consent under California Code of Civil Procedure section 284(1)" (Winters Decl., ¶ 2.) The declaration is on the proper Judicial Council of California form MC-052 and complies with Cal. Rules of Court, rule 3.1362(c). As for service, Plaintiff counsel has provided proper proofs of service for the notice of motion and motion and the declaration to the client and Defendant's counsel. Service complies with Cal. Rules of Court, rule 3.1362(d).

The proposed order has been prepared on the correct Judicial Council of California form MC-053 and has been lodged with the Court with the moving paper.

The Motion to be Relieved as Counsel is GRANTED. The Court will sign the proposed order. Adding 10/7/26 for:

OSC re POS of Order to Be Relieved as Counsel on Plaintiff Altman is set for 10/7/26 at 8:30 a.m.

OSC re Failure to File Proof of Service and Why Sanctions including Dismissal Should not Be imposed

Case Management Conference